

IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT

IN AND FOR PASCO COUNTY, FLORIDA

JUVENILE DIVISION

IN THE INTEREST OF:

Case No.:

TREY MYKEL DAVIS, DOB: 03/13/2013

JACE DYLAN DAVIS, DOB: 07/12/2015

BELLMIRA ROSE DAVIS, DOB: 12/28/2018

PETITION TO REOPEN DEPENDENCY CASE AND MODIFY

CUSTODY/VISITATION

COMES NOW Petitioner, MATTHEW AARON DAVIS, the biological father of the above-named children, and respectfully petitions this Honorable Court to reopen the closed child dependency case pursuant to Florida Statutes § 39.621(11) and requests a modification of custody and visitation orders. In support thereof, Petitioner states the following:

I. JURISDICTION AND STANDING

1. This Court has jurisdiction under Chapter 39, Florida Statutes.
2. Petitioner is the biological father of the children named above and a party to the original dependency case.

3. Petitioner has legal standing and a direct interest in the welfare, custody, and care of his minor children.

II. BASIS FOR MOTION

4. A substantial change in circumstances has occurred since the closure of the dependency case.
5. Petitioner seeks the reopening of this matter to address grave concerns related to the welfare and placement of his children, absent enforcement of prior court orders, and the constitutional right to parent.
6. Possible human trafficking and robbery of minor children under color of state law.

III. REQUEST FOR MODIFICATION OF CUSTODY AND VISITATION

7. Petitioner respectfully requests the Court to restore full custody or at minimum reinstate meaningful unsupervised visitation, including overnights, as previously granted by the Honorable Judge Babb for all his children and not just his daughter.
8. Petitioner intends to relocate to Upstate New York, where he has stable family support and employment opportunities, and seeks leave of the Court

to bring his children with him once properly established and reviewed by the Courts.

9. Petitioner will notify the Court and all parties of his new residence once relocation is completed and requests transitional reunification planning consistent with the guidance of the Dependency Benchbook and § 39.621(11), Fla. Stat.

IV. DUE PROCESS AND COURT ORDER VIOLATIONS

10. A valid court order previously issued by Judge Babb permitted unrestricted, unsupervised, and overnight visitation between Petitioner and his daughter.
11. Despite this, Pasco County Sheriff's Office refused to honor the court order, intentionally, knowingly and unlawfully interfering with court-ordered visitation and contributing to the unjust separation of the Petitioner and his children¹
12. Petitioner was not notified of the children's whereabouts in direct violation of Florida law and prior orders, raising serious due process concerns under the Fourteenth Amendment of the U.S. Constitution.

V. ALLEGATIONS OF MISCONDUCT AND ENDANGERMENT

¹ YouTube video evidence of PCSO enforcing the separation of family against court order web address <https://youtu.be/k0UhonVDu8w?feature=shared>

13. Petitioner fears for the physical and psychological safety of his children due to:

- a. Their placement with maternal great-grandparents who are now in their 80s
- b. Allegations that the great-grandfather has prior child molestation charges in Michigan
- c. Verified transfer of \$171,000 to the great-grandfather, potentially in lieu of trust funds owed to the children from insurance claim in
- d. Case number 512022CA001827CAAXES.

14. Petitioner believes that his children may have been wrongfully trafficked or sold and seeks immediate federal judicial inquiry into their placement and safety.

VI. VIOLATION OF CONSTITUTIONAL RIGHTS

15. Petitioner asserts that he has been systematically persecuted and slandered by local authorities as part of a targeted campaign of character assassination and social "guerrilla warfare" tactics used by law enforcement against a civilian, which has completely destroyed his reputation and destroyed his lawful relationship with his children.

16. Violating his constitutional liberties and God given right to be a father to his children.

17. Petitioner has suffered denial of equal protection under the law and demands federal monitoring or oversight, to ensure transparency in all current and future proceedings.

VII. VERIFICATION / OATH OF SERVICE

18. “I, MATTHEW AARON DAVIS, certify under penalty of perjury that the foregoing facts are true and correct to the best of my knowledge and belief.

Signed by myself, MATTHEW AARON DAVIS, and dated on this 3rd day of August in the year of our Lord 2025

/s/ MATTHEW AARON DAVIS

Matthew Aaron Davis
4833 Cottage St
Zephyrhills FL 33542
656-212-3599
davismatthewa2024@gmail.com

Date: 08/03/2025

VIII. REQUEST FOR RELIEF

WHEREFORE, Petitioner respectfully requests that this Honorable Court:

19. Reopen the dependency case pursuant to Florida Statute § 39.621(11);

20. Conduct a full evidentiary hearing to assess the current placement, status, and welfare of the children;
21. Hold permanent guardians in contempt for violating Petitioner's visitation and parental rights.
22. Approve Petitioner's relocation to Upstate New York without removing parental rights due to abandonment.
23. Approve the children's relocation to Upstate New York with their biological father once he is established.
24. Reopen and address civil suit 512022CA001827CAAXES in regards to the motion of contempt filed months ago
25. Provide such further relief as the Court deems just and proper.

Respectfully submitted,

/s/ MATTHEW AARON DAVIS

Matthew Aaron Davis
4833 Cottage St
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656-212-3599
davismatthewa2024@gmail.com

Date: August 03, 2025

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing

1. VERIFIED PETITION TO REOPEN DEPENDENCY CASE AND
MODIFY CUSTODY/VISITATION
2. CERTIFICATE OF SERVICE

was served on this 3rd day of August in the year, 2025, to the Sixth Judicial Circuit
Court of Florida Clerk of Court who's responsibilities is to notify and provide
copies to all parties.

Respectfully submitted,

/s/ MATTHEW AARON DAVIS

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August 3, 2025